

Problem Question – Duty of Care

Matthew and Steven Taylor have just moved to the suburbs with their teenaged son, Alex. They love Halloween and want to get to know their neighbours better, so they throw a big party. The invitation says, “Come dressed as your favourite movie character! BYOB.”

On the night of the party, Matthew and Steven (dressed as Barbie and Ken) welcome their neighbours in. They have also invited some of the parents of Alex’s school friends. One of them (dressed as Ursula from the Little Mermaid) also brings lots of alcohol.

The only alcohol that Matthew and Steven serve is some champagne for the guests. There were more guests than they anticipated so each person only gets about half a glass each. “Ursula”, meanwhile, sits in a corner and knocks back his bottles of beer. He consumes about 12 bottles of beer by the end of the 3-hour party.

When everyone is leaving, Ursula looks a little unsteady on his feet, and Matthew asks him if he is okay. Ursula says he is fine, gets in his car, and starts to drive home.

Unfortunately, on the way home, Ursula’s car drifts into oncoming traffic and collides head-on with a vehicle containing three people. One of them, Prabhjeet, is so seriously injured that they are rendered paraplegic for life. They sue not only Ursula, but Matthew and Steven as well.

The only issue before the court is: did Matthew and Steven owe a duty of care to Prabhjeet?

Assume that there is case law establishing a duty of care between a bar and persons injured in a vehicle crash by an impaired patron of that bar.